



REPUBLIC OF THE PHILIPPINES

City of San Juan

METRO MANILA

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OFFICE OF THE SANGGUNIANG PANLUNGSOD

CITY ORDINANCE NO. 1

Series of 2022

AN ORDINANCE PROVIDING FOR THE ENHANCED VACCINATION MANDATE TO REGULATE THE MOBILITY OF UNVACCINATED INDIVIDUALS WITHIN THE TERRITORIAL JURISDICTION OF SAN JUAN CITY AND PROVIDING PENALTIES FOR VIOLATION THEREOF

Sponsored by: Councilors Rolando M. Bernardo, Raissa H. Laurel-Subijano, Arthur Alfredo E. Aquino, Paul Anthony D. Artadi, Bea Celine D. De Guzman-Cabatbat, Michael Cristopher R. Mathay, Vincent Rainier M. Pacheco, Kit R. Peralta, Herbert O. Chua and Ariel I. Atad

WHEREAS, Article II, Section 15 of the 1987 Philippine Constitution provides that the State shall protect and promote the right to health of the people and instill health consciousness among them;

WHEREAS, Section 16 of Republic Act (R.A.) No. 7160 otherwise known as the Local Government Code of 1991 provides that "Every local government unit shall exercise the powers expressly granted, those necessarily implied there from, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare.";

WHEREAS, Article 99 of Administrative Order No. 270 or the Implementing Rules and Regulations of the Local Government Code of 1991 provides that "The Sangguniang Panlungsod, as the legislative body of the city, shall enact ordinances, approve resolutions and appropriate funds for the general welfare of the city and its inhabitants pursuant to Sec. 16 of the Code.";

WHEREAS, the National Capital Region (NCR) has been placed under Alert Level 3 from 03 January to 15 January 2022 in view of the rising active cases of COVID-19 in the Philippines;

WHEREAS, the advances in public health and the economic gains that have been achieved in the recent months under Alert Level 2 must be sustained and pre-emptive measures must be adopted in order to forestall and immediately address the perceived adverse impact of COVID-19, particularly the highly-transmissible Omicron variant, upon the NCR under said Alert Level 3;

WHEREAS, there is an array of available COVID-19 vaccines in the NCR and more than one hundred percent (100%) of the Region's target eligible population are now fully vaccinated;

WHEREAS, the global experience evidences that the COVID-19 vaccines are and continue to be effective against the virus, including the Omicron variant, and prevent severe infection cases and avert the need for hospital care;

WHEREAS, however, despite the availability of vaccines, there is a number of individuals who adamantly opt not to be vaccinated and thus, become more susceptible to severe cases of COVID-19 infection which will in turn require hospital care thereby unduly burdening the health care system to the detriment of public health;

WHEREAS, Republic Act No. 11332 or the "Mandatory Reporting of Notifiable Diseases and Health Events of Public Health Concern Act" declares that it is the policy of the State "to protect and promote the right to health of the people and instill health consciousness among them" and that the State "recognizes epidemics and other public health emergencies as threats to public health and national security, which can undermine the social, economic, and political functions of the State";

NOW THEREFORE, BE IT ORDAINED AS IT IS HEREBY ORDAINED, by the Sangguniang Panlungsod of the City of San Juan, Metro Manila, in a session duly assembled, that:

SECTION 1. TITLE – This Ordinance shall be called "*AN ORDINANCE PROVIDING FOR THE ENHANCED VACCINATION MANDATE TO REGULATE THE MOBILITY OF UNVACCINATED INDIVIDUALS WITHIN THE TERRITORIAL JURISDICTION OF SAN JUAN CITY AND PROVIDING PENALTIES FOR VIOLATION THEREOF*".

SECTION 2. RESTRICTIONS FOR UNVACCINATED INDIVIDUALS – Unvaccinated individuals shall:

1. Remain in their residences at all times except for the procurement of essential goods and services such as, but not limited to, food, water, medicine, medical devices, public utilities, and energy, work, and medical and dental necessities; *Provided, however*, that individual outdoor exercise shall be allowed within the general area of their residence, *e.g.*, within the *barangay, purok*, subdivision, or village;
2. Be prohibited in indoor and outdoor/*al fresco* dining in restaurants and other food establishments and shall likewise be prohibited from leisure or social trips to malls, hotels, event venues, sports and country clubs, and similar facilities;
3. Be prohibited in domestic travel *via* public transportation by land, sea, and air except for the procurement of essential goods and services such as, but not limited to, food, water, medicine, medical devices, public utilities, and energy, work, and medical and dental necessities subject to the production of proof to support and justify such travel;
4. Be required to undergo a Reverse Transcription Polymerase Chain Reaction (RT-PCR) test every two (2) weeks at their personal expense and present a COVID-19 negative result prior to being admitted for work onsite consistent with the guidelines, rules, and regulations issued by the IATF and the Department of Labor and Employment; *Provided, however*, that in the event that the RT PCR test and/or result is/are not immediately available, a Rapid Antigen Test may be utilized *in lieu* thereof;

The foregoing rules shall also cover individuals who reside outside San Juan City but who work and/or travel to the same.

Likewise, the foregoing rules shall be implemented in the event of Alert Level 3 or above or its equivalent.

SECTION 3. PENALTIES – Any individual and/or establishment found to be in violation of these COVID-19 protocols shall be prosecuted in accordance with the penal provision of Republic Act No. 11332, particularly Section 9 (d) and (e) on Prohibited Acts in relation to Section 10 on Penalties.

Furthermore, any individual or establishment who or which will falsify the COVID-19 vaccine card shall be prosecuted under R.A. No. 3815 or the Revised Penal Code, as amended, pursuant to Section 12 of Republic Act No. 11525 or the COVID-19 Vaccination Program Act of 2021.

SECTION 4. IMPLEMENTING AUTHORITY – The Office of the City Mayor and other implementing officers as may be authorized are hereby tasked to implement this Ordinance.

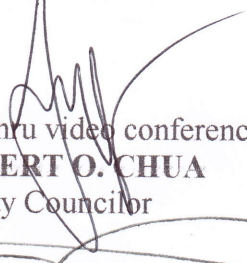
SECTION 5. SEPARABILITY CLAUSE – If, for any reason, any section or provision of this Ordinance is declared unconstitutional or invalid by a competent court, the remaining sections or provisions not affected thereby shall continue to be in full force and effect.

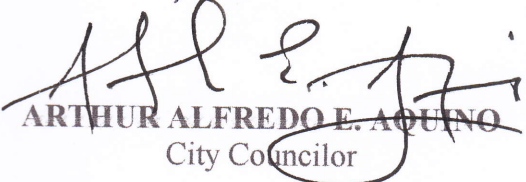
SECTION 6. REPEALING CLAUSE – All Ordinances contrary to or inconsistent with any of the provisions of this Ordinance is hereby repealed and/or modified accordingly.

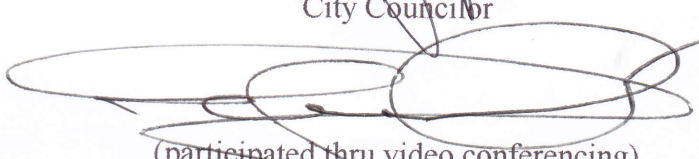
SECTION 7. The authority, issuance and approval hereof is subject to and conditioned upon compliance to certain restrictions and to all existing laws, circulars, rules and regulations.

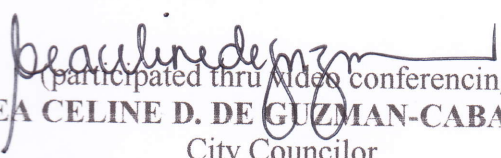
SECTION 8. EFFECTIVITY – This Ordinance shall take effect immediately.


ARIELA I. ATAD
City Councilor

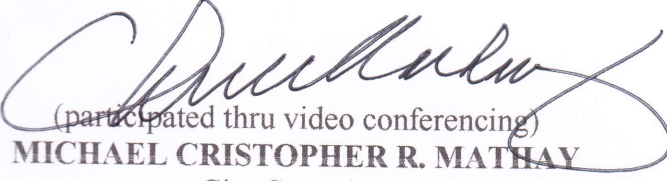
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HERBERT O. CHUA
City Councilor


ARTHUR ALFREDO E. AQUINO
City Councilor

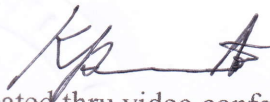
(participated thru video conferencing)

PAUL ANTHONY D. ARTADI
City Councilor


(participated thru video conferencing)
BEA CELINE D. DE GUZMAN-CABATBAT
City Councilor

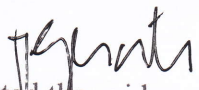

(participated thru video conferencing)
MARY JOY A. IBUNA-LEOY
City Councilor

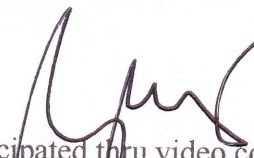

(participated thru video conferencing)
MICHAEL CRISTOPHER R. MATHAY
City Councilor


(participated thru video conferencing)
VICTOR JOSE L. REYES
City Councilor

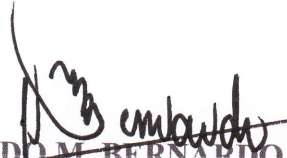

(participated thru video conferencing)
KIT R. PERALTA
Sergeant-at-Arms
City Councilor


(participated thru video conferencing)
FRANCESCO PAUL R. VELASCO
Assistant Minority Floor Leader
City Councilor


(participated thru video conferencing)
JANNAH A. EJERCITO
Minority Floor Leader
City Councilor


(participated thru video conferencing)
VINCENT RAINIER M. PACHECO
Assistant Majority Floor Leader
City Councilor


(participated thru video conferencing)
RAISSA H. LAUREL-SUBIJANO
Majority Floor Leader
City Councilor


ROLANDO M. BERNARDO
President Pro-Tempore
City Councilor

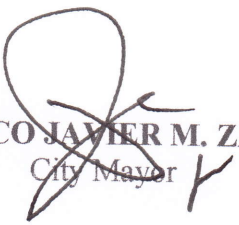
I HEREBY CERTIFY THAT THIS ORDINANCE
HAS BEEN DULY APPROVED BY THE
SANGGUNIANG PANLUNGSOD ON JANUARY 4, 2022.


RIA P. ESTRELLA-PADILLA
City Government Department Head II
Secretary, Sangguniang Panlungsod

ATTESTED:


JOSE WARREN P. VILLA
Presiding Officer
City Vice-Mayor

APPROVED:


FRANCISCO JAVIER M. ZAMORA
City Mayor